

BYE-LAWS OF GREEN POWER RESIDENTS' WELFARE ASSOCIATION

CHAPTER – I

1. SHORT TITLE AND APPLICATION

1.1 NAME OF SOCIETY: GREEN POWER RESIDENTS' WELFARE ASSOCIATION, SECTOR-75, FARIDABAD-121004 (HARYANA).

1.2 The Registered Office of the Society shall be at Stilt Area, Site-1 of M/s SLF Anushree Apartments, Sector-75, Faridabad-121004 (Haryana).

1.3 The Society shall carry out its major activities in the Faridabad District within the territory of the State of Haryana.

1.4 These Bye-Laws shall be called the Bye-Laws of the "Green Power Residents' Welfare Association" or may be referred to as "GREEN POWER RESIDENCY" Bye-Laws.

1.4.1 The provisions of these Bye-Laws shall apply to GREEN POWER RESIDENCY.

1.4.2 All present or future owners, tenants, their employees, or any other person who may use the facilities of the building/buildings in any manner shall be subject to the regulations set forth in these Bye-Laws.

1.4.3 The mere acquisition, rental, or taking of licence/lease of any independent Flat (hereinafter referred to as "Unit") of the building, or occupancy of any such Unit, shall signify that these Bye-Laws are accepted, ratified, and shall be complied with.

2. DEFINITIONS

2.1 "Act" means the Haryana Registration and Regulation of Societies Act, 2012.

2.2 "Bye-Laws" means the Bye-Laws of the Society.

2.3 The word "ASSOCIATION" or "SOCIETY" shall mean and include "Green Power Residents' Welfare Association, Sector-75, Faridabad, Haryana-121004."

2.4 "Member" means a person who fulfils the eligibility criteria for becoming a member of a Society, as specified in the Act, and has been admitted as a member of the Society in accordance with the Green Power Residency Bye-Laws.

2.5 "General Body" means all the members of the Association who shall constitute the General Body. Every person admitted ordinarily as a member shall be a member of the General Body of the Society.

2.6 "Elected Member" means a member of the Society who is duly elected as a member of the Governing Body or as an Office Bearer or as an Executive Member.

2.7 "Financial Year" means the period commencing from the 1st day of April of a year and ending with the 31st day of March of the following year.

2.8 "Governing Body" means the committee of Office Bearers constituted or elected by the members of the Association and responsible for the management of the day-to-day affairs of the Society.

2.9 "Memorandum" means the Memorandum of Association of a Society as originally framed and as amended from time to time in accordance with the provisions of the Act.

2.10 "Rules" means the rules made under the Act.

2.11 "Family Member" means the current Flat Owner and his/her immediate family, namely his/her husband/wife, children, mother, and father.

2.12 "Office Bearer" means and includes the President, Sr. Vice-President, General Secretary, Joint Secretary, Treasurer, or any other member of the Governing Body empowered under the Bye-Laws to give directions in regard to the conduct of the business of the Society.

2.13 "Governing Body Resolution" means a resolution passed if at least 40 percent of the members entitled to vote are present and the resolution is approved by 3/5th (three-fifths) of the members so present and voting.

2.14 "Special Resolution" means a resolution passed in a meeting of the General Body or the Governing Body, as the case may be, in which at least 40 (forty) per cent of the members entitled to vote are present and the resolution is approved by 3/5th (three-fifths) of the members so present and voting.

2.15 "Election Committee" means a body of members comprising an odd number of members, with a maximum of 15 (fifteen) members, appointed by the Governing Body to conduct elections.

3. HARYANA APARTMENT OWNERSHIP ACT, 1983

The housing complex raised at Site-1 of SLF Anushree Apartments, Sector-75, District Faridabad, and known as the Green Power Residents' Welfare Association, is submitted to the provisions of the Haryana Registration and Regulation of Societies Act, 2012 and the Haryana Apartment Ownership Act, 1983, and the rules made thereunder.

4. AIMS AND OBJECTS OF THE ASSOCIATION

4.1 To be and to act as the Association of Unit Owners of Green Power Residency, called the Green Power Residents' Welfare Association, who have filed their respective declarations submitting their units to the provisions of the Haryana Apartment Ownership Act, 1983 and the Haryana Registration and Regulation of Societies Act, 2012.

4.2 To invest or deposit contributions and other money with the Association.

4.3 To ensure that the complex is properly managed, maintained and administered in a manner compatible with the standards and expectations of the Unit Owners.

4.4 To provide for the maintenance, repair and replacement of fittings, fixtures, appurtenances or other property requiring maintenance, repair and replacement comprised in common areas and facilities by contributions made by the Unit Owners, and, if necessary, by raising loans for that purpose.

4.5 To take stage-wise transfer of the Society's assets and liabilities from the Developer after satisfactory completion/fulfilment of the deliverables.

4.6 To retain and permit use of common facilities to outsiders for display of their products and/or temporary commercial setup against an approved charge and appropriate such income for the objects of the Association or credit the same to a Reserve Fund.

4.7 To establish and conduct educational, physical, social and recreational activities for the benefit of the Unit Owners on its own account or jointly with individuals or institutions.

4.8 To organize National Festivals (Republic Day, Independence Day and Gandhi Jayanti) at the cost of GREEN POWER RESIDENCY and to try to organize festivals celebrated throughout the nation, such as English New Year, Holi, Navaratri, Dussehra, Janmashtami, Ram Navami, Makar Sankranti, Deepawali, Christmas, Eid, etc., through the Cultural Committee. GREEN POWER RESIDENCY will sponsor the National Festivals entirely. However, in case the residents intend to celebrate these festivals on a much larger scale involving substantial expenditure, GREEN POWER RESIDENCY may seek cooperation from the residents and ask for donations, contributions or sponsorships for the intended festivals against proper receipt. GREEN POWER RESIDENCY may contribute up to Rs. 5,000/- for each festival, subject to eligibility criteria defined by the General Body/Governing Body, if the residents intend to celebrate the festivals through their own contributions or sponsorships on a larger scale.

4.9 To recognize and facilitate culturally diverse associations/groups based on different linguistic, cultural and regional backgrounds, reflecting the character of GREEN POWER RESIDENCY as a mini India. These bodies/groups/associations may perform regional/cultural festivals among themselves and organize medical camps. The onus of executing, organizing, performing and practising traditional and regional festivals of diversified Indian culture shall lie with these associations/bodies/groups, who shall perform and practise such traditional festivities in their traditional manner. GREEN POWER RESIDENCY may allow such legal bodies to use the GREEN POWER RESIDENCY premises for their activities for the betterment of society, subject to nominal charges as decided by the Governing Body. However, the Governing Body shall have the power to waive or condone such charges if the activities are considered to be for the betterment of the society. GREEN POWER RESIDENCY may also contribute and extend support to such groups/associations for arranging festivals, occasions, events celebrated across India and medical events, subject to the eligibility criteria defined by the Governing Body. Where financial support from GREEN POWER RESIDENCY is sought for organizing any such festival, event or activity, the organizing group/association shall provide an income and expenditure statement of the said event, which shall be presented before the Governing Body.

4.10 To do all things necessary or/and otherwise provide for the attainment of the objects specified in these Bye-Laws and rules framed from time to time.

4.11 The Association shall not act beyond the scope of its objects without suitably amending the provisions of these Bye-Laws for the purpose.

4.12 To facilitate better living conditions and create congenial and harmonious relations among members of the Association.

4.13 To promote mutual respect, cooperation and coexistence, fraternity, harmony and peaceful co-existence and to resolve any dispute among members.

4.14 To interact and coordinate with the District Administration, other Government Departments, Builder/Developer and their representatives for securing better services within the periphery of the project and provision of services.

4.15 To ensure cleanliness and hygienic conditions and greenery in and around the complex.

4.16 To provide a telephone directory to all members for better connectivity and communication.

4.17 To frame rules with the approval of the Governing Body and, after consulting the competent authority, to undertake all lawful acts, deeds, matters or things which are considered incidental or conducive to the attainment of the aims and objects.

4.18 The Association shall not sell or dispose of its immovable properties without the approval of the General Body, as the case may be.

4.19 To ensure all or any part of the complex, namely GREEN POWER RESIDENCY, is protected from any damage by fire/loss due to natural calamities and to insure the properties and assets of the Society against fire, earthquakes, natural calamities, strikes, terrorist acts, etc., after fulfilling the applicable clauses, and the expenses thereof shall be paid from the maintenance charges.

4.20 To ensure that all incomes/earnings from movable or immovable properties of the Association are solely utilized and applied towards the promotion of its aims and objects, and no profit thereof shall be paid or transferred directly or indirectly by way of dividends, bonus, profits, etc. No member of the Association shall have any personal claim on any movable/immovable properties of the Association or make any profit therefrom. No member shall derive any financial benefit out of the income/funds of the Association whatsoever or in any manner.

4.21 To appoint, terminate or dismiss any employee/contractor and pay their salaries/wages for the services rendered to the Association.

5. AFFILIATION:

If any Federation of Unit Owners' Associations comes up in Greater Faridabad, the Association may become a member thereof with the approval of the Governing Body and pay the sum from time to time payable to such Federation under its rules.

CHAPTER-II

6. TERMS OF ADMISSION OF MEMBERS

6.1 The Society shall have a maximum of 152 Main Dwelling Unit Owners.

6.1.1 Every person who owns dwelling unit/units in Site-1 of SLF Anushree Apartments, Sector-75, Faridabad, and has executed the respective declarations pursuant to Clause 3 of these Bye-Laws, submitting the unit to the provisions of the Haryana Apartment Ownership Act, 1983, shall be a member of the Association and shall pay a sum of Rupees One Hundred (Rs. 100/-) as membership fee. The resident shall make the payment of the membership fee through a bank instrument (no cash payment). Bouncing of a cheque shall invite a penalty as charged by the bank.

6.1.2 Each owner, on being admitted as a member, shall be allotted one share in respect of each dwelling unit/units under his/her ownership. As far as rights in the common areas of the complex are concerned, the same shall be governed by Section 6 of the Haryana Apartment Ownership Act, 1983.

6.1.3 Every Unit Owner must hold at least one share of the Association and the Joint Owners shall hold the share jointly.

6.1.4 Each Unit Owner shall receive a membership number, a copy of the Bye-Laws and guidelines in electronic form for their reference. A hard copy shall also be supplied on demand upon payment of charges of Rs. 100/- for each instance or at such reasonable cost as the Association considers appropriate to meet the expenses.

6.1.4 Upon any Unit Owner transferring his/her unit by way of any will (other than death), gift or sale, or a unit becoming liable to transfer on account of natural inheritance, the successor-in-interest shall automatically become a member of the Association and shall be admitted as a member on payment of the applicable membership fee; provided that any transfer of the unit by way of sale to a third party, other than those involving family transfers, shall require prior approval of the Green Power Residents' Welfare Association. Further provided that wherever the Association permits any such transfer, the seller/transferor or the buyer/transferee, as mutually settled between the parties, shall be liable to pay to the Association a one-time transfer fee of Rs. 50,000/- or such charges as decided by the General Body from time to time, whichever is higher. However, no transfer charges shall be payable for transfer of a unit within the family, i.e., between husband or wife, son, daughter and parents.

6.1.4 On the death of a Unit Owner, the unit shall be transferred to the person or persons to whom the owner bequeaths the same by his/her nomination or will, or to the legal heirs of his/her estate, in case he/she has not made any specific bequest of the unit.

6.1.5 Where any legatee is a minor, the Unit Owner shall appoint a guardian of such minor to exercise the powers and perform the functions required under these Bye-Laws.

6.1.6 The Governing Body shall issue an identity-cum-membership card to all the members, which may also be used for availing club/recreational facilities of the Society, as per Form XI of the Rules.

6.2 No commercial activity shall be allowed by any Unit Owner/Tenant in the residential area.

6.3 Bachelors, whether singly or in a group, shall not be permitted to be inducted as tenants in the Society. In any

case, if such tenancy is permitted, the owner of the flat shall be held responsible for the conduct of such tenants. Verification of tenants from the local police station shall be mandatory. Further, foreign nationals shall not be permitted to be inducted as tenants in the Society.

6.4 Any tenancy agreement shall be vetted by GREEN POWER RESIDENCY, and GREEN POWER RESIDENCY shall issue an NOC for each occasion of move-in and move-out.

6.5 Annual subscription fee: The annual subscription fee per flat shall be Rs. 100/- or any amount as approved by the Governing Body from time to time, which shall be payable between 1st April and 15th April of the calendar year for annual payment.

6.6 GREEN POWER RESIDENCY reserves the right to get the membership charges billed in the monthly maintenance bill, directly or through its designated agency.

6.7 Any payment or receipt of funds by GREEN POWER RESIDENCY shall be acknowledged with a receipt mentioning the registration number of the Society and the correspondence address.

6.8 Admission Procedure for Members: For admission to the Association, every Flat Owner:

- a. Must be 21 years of age on the date of admission.
- b. Must subscribe to the aims and objectives of the Society.
- c. Must have deposited the membership fee as prescribed in the Bye-Laws of the Society.
- d. Must not be an insolvent and must not be of unsound mind.
- e. Must own a Unit/Flat in GREEN POWER RESIDENCY, Sector-75, Faridabad.
- f. In the case of an HUF (Hindu Undivided Family), the "Karta" of the family shall be the member of the Society, subject to fulfilment of points (a) to (e) above.
- g. In the case of a company/partnership firm owning a dwelling unit, the company/firm shall not be eligible to become a member of the Society. However, a partner of a partnership firm may become a member of the Society in his/her individual capacity, subject to fulfilment of Sr. No. 23 of the Act and points (a) to (e) above.

6.9 Although Unit Owners shall be liable to pay monthly maintenance charges with effect from May 2019, as decided in the AGM held on 19.05.2019, such liability shall apply even if the concerned Unit Owner is not a member of the Association.

6.10 For admission to the Association, every Flat Owner shall submit a duly filled-in form, as specified by the Association (reference may be made to Form-X of the Rules, 2012), along with a copy of the Deed of Unit, Proof of Identity and Date of Birth (Aadhaar Card/PAN Card/Driving Licence/Voter ID or any other Government ID which can establish the identity of the member) for all Joint Unit Owners, photograph(s) of all the Unit Owners and a copy of the latest maintenance bill bearing the name of the owner(s) to the Secretary for incorporating the name in the Membership Register. In case of purchase, the registered Deed of Unit should be mutated or processed for mutation, and documentary evidence thereof shall be submitted along with the form.

6.11 Membership cannot be transferred to other family members residing with the Unit Owner(s). However, such family members may take part in GREEN POWER RESIDENCY activities with a No Objection Certificate-cum-Authorization Certificate submitted by the Unit Owner(s) on his/her/their behalf, along with an application duly signed by the owner(s) of the Flat. This facility shall be available only to the immediate family members of the Flat Owner as detailed in Clause 2.12.

6.12 Register of Membership: The Association shall maintain at its office a Register of its members (as per Form-XII of the Society Registration Rules, 2012) and shall enter therein, after the admission of a member or the cessation of membership, as the case may be, the following particulars:

- a. The name and address of the member.
- b. The date on which the member was admitted.
- c. The date on which the member ceased to be a member.
- d. Details of family members living with the Flat Owner and their contact details (including mobile number).

6.13 The Association shall file the updated list of members with the Registrar along with the audited annual accounts as per Form-XV of the Act.

6.14 Cessation of Membership: Any person admitted as a member shall cease to be a member of the Society in the following circumstances:

- a. If he/she ceases to fulfil the eligibility conditions for being admitted as a member as mentioned under Clause No. 6.
- b. If he/she attracts the provisions contained in Section 22 of the Act.
- c. Upon indictment and directions for removal by the District Registrar/Registrar/Registrar General of Societies.
- d. Upon such member being found guilty of financial misappropriation of the funds of the Society.
- e. If any member of the Society indulges in physical violence with any other member of the Society, then his/her membership will be suspended by the Governing Body with immediate effect for the next two financial years,

subject to the provisions of 2(xxiv) of the Act. If the concerned person is a member of the Governing Body, he/she will be removed by a special resolution in the meeting of the Governing Body.

f. In the case of suspension of a member of the Governing Body, a new member will be elected for the vacant post by following the election process for the remaining term.

g. If a member refuses or neglects to comply with any provision of the Act, his/her membership will be suspended by the Governing Body with immediate effect, subject to the provisions of 2(xxiv) of the Act.

6.15 Re-admission of Suspended Member: The suspended member will be re-admitted by the Governing Body based on the payment of any fine imposed, assessment of the facts which the member presents to the Association, and the merits of the case on a case-to-case basis.

7. JOINT UNIT OWNERS

Where a unit has been allotted in favour of two or more persons jointly, they may be jointly entitled to the ownership of the unit and the share of the Association in such case may be issued in their joint names. However, the person whose name stands first in the conveyance deed shall have the right to contest and vote; provided that such person, whose name stands first in the share certificate, may transfer such right to vote and contest to any one of the other joint owners. The owner/s can transfer the right to contest and vote through joint authorization and No Objection Certificate to any family member residing with him/her conforming to Clause 2.12 of the Bye-Laws, provided that such person fulfils points 6.9(a) to (d) above. Any activity by the authorized member conforming to Clause 6.15 of the Bye-Laws shall also implicate the same to the Unit Owner/s who authorized the family member to vote and contest for a specific election.

8. DISQUALIFICATIONS

No Unit Owner shall be entitled to vote on the questions of the election of members of the Governing Body or any Office Bearer, or be entitled to stand for election to such office, if he or she is in arrears of any payment to the Association on account of common maintenance charges, utility bill payments, common area user charges, etc., on the first day of the month of the election for more than 60 days.

9. POWERS, FUNCTIONS AND DUTIES OF ASSOCIATION

9.1 The Association will take over maintenance and utility services and administration of the common facilities and services of the Unit Owners only and only when all the pending deliverables and snag lists of common areas and services offered and promised by the Builder/Developer, as recorded by the Executive Body in different meetings, brochures, websites, e-mails, etc., shall have been fulfilled.

9.2 After transfer and mutually agreed phased taking over, the Association will be responsible for complete administration of the common facilities and services of the Unit Complex and shall be competent to exercise all powers in this behalf, e.g., preparation and approval of the annual budget, determination and collection of monthly contributions from the members, placing demand for any additional contribution occasioned by any unforeseen liability, interacting with all Government or Semi-Government agencies, etc., in furtherance of the overall management of the Unit Complex in an efficient manner.

9.3 Except as otherwise provided, resolutions of the Association shall require approval by a majority of members present and voting, casting their votes in the manner provided in the Bye-Laws.

9.4 To ensure compliance with the obligations of members and to ensure achievement of the aims and objects of the Association.

10. PLACE OF MEETINGS

10.1 The meetings shall be held in the office of GREEN POWER RESIDENCY or at any suitable place within GREEN POWER RESIDENCY, as decided by the Governing Body.

11. ANNUAL GENERAL MEETING

11.1 The first General Body Meeting (including all members) will be held to approve the Bye-Laws as the order of business.

11.2 The Annual General Body Meeting of the Association shall be held every year at any time before 31st July so as to consider, approve and adopt the annual accounts of the Association and transact all such business as it may be required to do.

11.3 The provision shall be in accordance with Sections 31(1), (2), (3), (4), (5), (8), (9) and (10) of Haryana Registration and Regulation of Societies Act, 2012.

12. EXTRA-ORDINARY OR SPECIAL GENERAL MEETINGS

12.1 The Association shall hold a meeting of the General Body (Governing Body and Executive Members) at least

once in three months.

12.2 The Association shall convene an extra-ordinary meeting of the General Body within forty-five days of receipt of a written requisition from at least one-tenth of the members of the General Body, as the case may be, for convening such a meeting. The notice requisitioning the General Meeting shall contain the reasons for such meeting along with the proposed agenda. A clear notice of fourteen days shall be given for the extra-ordinary meeting of the General Body to all the members, specifying therein the date, time, place and the business to be transacted at such meeting. A copy of the notice for an extra-ordinary General Meeting shall also be endorsed to the District Registrar, who may nominate an officer subordinate to him or an independent observer to remain present during such meeting.

12.3 The provision shall be in accordance with Sections 31(6), (7) and (10) of the Haryana Society Act.

13. NOTICE OF MEETINGS

13.1 The Governing Body shall ensure that a notice of 14 days, indicating the time, date, venue and agenda, is given to the members for any General Meeting. The notice of the meeting sent by electronic mail to the e-mail ID of the member shall be a valid mode of service of such notice.

13.2 A copy of the notice of every General Meeting, annual or special, shall also be sent to the office of the District Registrar and/or the Housing Commissioner, as the case may be. A hard copy of the said notice may be sent to the concerned office of the District Registrar and/or the Housing Commissioner if these offices are not electronically connected.

14. QUORUM AND VOTING

14.1 The quorum for every General Meeting, annual or special, of the Governing Body shall be 40% of the members entitled to vote present at the meeting.

14.2 There shall be one vote for each member of the Governing Body, irrespective of the number of units he/she owns or is authorized to vote for. A member may exercise the voting right through a joint member on the authority of the member, conforming to Clause 2.12.

14.3 Every vote, whether exercised by the member or by the duly authorized joint member, shall be cast in person. Provided that the member may communicate such authority in favour of the joint member through a letter or electronic mail (the member should have earlier registered his/her e-mail address with the Secretary in writing). Additionally, no voting shall be permitted by proxy.

14.4 Any resolution to be passed through voting shall strictly fulfil the requirements of Clause 2(xxiv) of the Act.

14.5 One member can cast only one vote for his/her unit. If any member has multiple dwelling units through ownership/authorization, he/she can cast multiple votes, subject to the maximum number of dwelling units he/she possesses in the Society or is authorized by his/her family members fulfilling Clause 2.12 of the Bye-Laws, for the election of the Governing Body and Executive Members.

14.6 The decision of the Governing Body or Election Committee in such cases or related matters shall be final.

15. ADJOURNED MEETINGS

15.1 A General Body/Governing Body meeting of the Association shall be adjourned if the quorum for such meeting is not complete.

15.2 The Governing Body shall re-convene an adjourned General Meeting after a gap of not less than 48 hours and not more than 14 days from the meeting first convened and adjourned.

15.3 If no quorum is present in the re-convened meeting, a total of 25% of the members present shall constitute the quorum, and the matters decided therein shall be valid and binding.

16. ORDER OF BUSINESS OF GENERAL BODY MEETING & GOVERNING BODY

16.1 The order of business of any General Meeting, annual or special, may be decided by the General Body/Governing Body, as deemed appropriate.

16.2 Agenda points for the AGM may be as per the following:

16.2.1 Welcome address by President.

16.2.2 Passing of Minutes of Last Meeting & ATR.

16.2.3 Presentation of Annual Report by outgoing Governing Body (including points put up by Internal Auditor and any Sub-Committees).

16.2.4 Consideration and approval of details of accounts, including the Balance Sheet, Income and Expenditure (Profit & Loss) Statement, together with the Auditor's Report for the preceding year.

16.2.5 Replies to questions submitted by Members at least 7 days before the meeting (all questions will be included).

16.2.6 Nomination of members as Internal Auditor(s), Standing Contracts and Appointment Committee.

16.2.7 Vote of thanks to the outgoing Governing Body (if due).

16.2.8 Any other point permitted by the President.

17. SPECIAL RESOLUTION

17.1 Any matter required to be resolved through a Special Resolution may be decided at any General Meeting, annual or special, or Governing Body Meeting, which is attended by at least 40% of the total members entitled to vote, and the proposal is approved by 3/5th (three-fifths) of the members present and voting.

CHAPTER-III

18. THE GOVERNING BODY OF THE ASSOCIATION, THEIR ELECTION, TENURE AND DUTIES

18.1 The Governing Body of the Association will consist of:

The Governing Body of the RWA/Society shall consist of a total of 14 Office Bearers and Members as under:

- a) President
- b) Sr. Vice-President
- c) Vice-President
- d) General Secretary
- e) Joint Secretary
- f) Treasurer
- g) Eight Executive Members

19. THE ELECTION OF THE GOVERNING BODY

19.1 The contestants for an Office Bearer post must be a member of the RWA.

19.1.1 The outgoing Governing Body shall appoint a new Returning Officer/Election Committee, who shall conduct the Governing Body elections.

19.1.2 After closing hours on the date of the poll, as per the timeline defined by the Returning Officer, the Election Committee will tabulate and declare the results and declare the list of the Office Bearers/Executive Members. The final result sheet, duly signed by 2/3rd (two-thirds) of the Election Committee members, will be displayed on the notice board of the Society.

19.1.3 The Association shall file the list of the Governing Body with the District Registrar within a period of 15 (fifteen) days of holding the elections for the General Body in the manner prescribed by the Act.

19.1.4 The information of holding the election of the General Body (Governing Body and Executive Members) shall also be sent to the District Registrar so as to appoint an observer, if he so desires.

19.1.5 The Office Bearers of the Governing Body shall not be entitled to any remuneration/fee for rendering services to the Society; provided that the Office Bearers shall be entitled to claim reimbursement of actual travel and out-of-pocket expenses incurred by them in connection with any work related to the Association, as per rules framed by the Governing Body.

19.2 THE ELIGIBILITY CONDITIONS: In addition to the requirements of membership under Clause Nos. 6 and 18 above, the following conditions shall also apply to Governing Body members.

19.2.1 Any member can be in the Governing Body for a continuous maximum of two terms of one year each only. Any Office Bearer/Governing Body member, after completion of his/her tenure of continuous two terms, must necessarily give a break of at least one year before contesting for the elections again.

19.2.2 The contestant must not be a Director/Owner or related to the Director/Owner of any Maintenance Agency maintaining the premises of GREEN POWER RESIDENCY or related to them.

19.2.3 In the event that the contestant is the Director/Owner of any of the Maintenance Agencies that qualifies for maintenance of GREEN POWER RESIDENCY premises after the elections, his/her candidature shall be cancelled automatically and the Governing Body shall re-elect a representative for the Governing Body.

19.2.4 Any member residing in the Society continuously for at least 6 months prior to the date of notification of the election shall only be eligible to contest the election.

19.2.5 Any member having a direct/indirect interest in the Maintenance Agency shall not be eligible to nominate himself/herself as a member of the Governing Body.

19.2.6 The members desirous of becoming Office Bearers shall be willing to spare reasonable time for the activities of the Association.

19.3 CESSATION OF GOVERNING BODY / EXECUTIVE MEMBERS

19.3.1 Upon submission and acceptance of his/her resignation.

19.3.2 If he/she ceases to be a member in accordance with Clause 6 of these Bye-Laws.

19.3.3 If the majority of the Governing Body members express their lack of confidence in any Office Bearer, for whatsoever reasons, they shall be competent to suspend such Office Bearer from office till such time as the matter is considered by the Governing Body for removal or otherwise resolved. A meeting shall be called within 45 days for this purpose.

19.4 FILLING OF ANY CASUAL VACANCY OF OFFICE BEARER: Any vacancy arising on account of resignation or death of any Office Bearer or for any other reason may be filled up by a vote of the majority from amongst the members of the Governing Body on an ad hoc basis. Fresh election to the post shall be called and the process completed within 6 months of the post falling vacant, for the balance term of the Governing Body.

POWERS AND FUNCTIONS OF THE OFFICE BEARERS (DUTIES)

20 PRESIDENT

- a) The President shall execute all responsibilities, rights, duties, and obligations as are attached to this office.
- b) He/she shall preside over all the meetings of the Governing Body as well as of the General Body, regulate the proceedings of such meetings and declare the results of the voting on a particular item.
- c) To exercise general supervision and guide the overall activities/achievement of aims and objectives of the Society.
- d) Shall sanction all expenditure vouchers for purchases already approved by the Governing Body based on budgetary approval above Rs. 5,000/-. Expenditure vouchers up to Rs. 5,000/- within the approved budget will be put up for his/her counter-signature after approval by the General Secretary.
- e) To sign all the documents/papers relating to all the proceedings of the meetings on behalf of the Association.
- f) To do all such acts, deeds and things as may be authorized by the Governing Body from time to time.
- g) To allow or disallow discussion on any matter which is not included in the agenda.
- h) To ensure proper and transparent functioning of the Society/Governing Body.
- i) The President will exercise his/her casting vote in case of a tie only.
- j) To ensure strict compliance with the provisions of the Haryana Registration and Regulation of Societies Act, 2012 and the Haryana Apartment Ownership Act, 1983 and the rules made thereunder.

21. SR. VICE-PRESIDENT

- a) To assist the President in carrying out his duties.
- b) In the absence of the President, to act on his behalf and perform all duties and exercise all the powers of the President.
- c) To do all such acts, deeds and things as may be authorized by the Governing Body.
- d) SVP shall look after all type of dispute pertaining to resolve of any disputes within GREEN POWER RESIDENCY and /or including interpretation of these Bye-Laws. If not able to resolve s/he shall put it to governing body for final settlement. If not resolved by them then s/he should reter it to the General Body, whose decision shall be binding on all parties.

22. VICE PRESIDENT

- a) To assist the President/Sr. Vice-President in carrying out his duties.
- b) In the absence of the Sr. Vice-President, to act on his behalf and perform all duties and exercise all the powers of the Sr. Vice-President.
- c) The Vice-President shall perform such functions as are assigned to him/her by the Governing Body from time to time.

23. GENERAL SECRETARY

The powers and duties of the General Secretary shall be as under:

- a) He shall be overall in charge of the secretarial functions of the Association and the Governing Body, including maintaining and conducting correspondence and recording the proceedings of meetings.
- b) To convene and conduct the meetings of the Governing Body/General Body, record the proceedings of all such meetings and maintain various registers as are required.
- c) He shall be the custodian of the common seal, all such books and records of the Association as may be directed by the Governing Body.
- d) To perform all such duties for the working of the Society as may be assigned by the Governing Body.
- e) To receive, scrutinize and place applications for membership of the Society before the Governing Body and to

enter the names of members, if approved, in the Register of Members (hard or soft copy) under his initials and to intimate the members about the same.

f) To prepare the Annual Report of the Society and place it before the Governing Body along with the audited annual accounts of the Society, for approval to place the same before the General Body in the Annual General Meeting.

g) To help and assist the President in looking after the complete affairs of the Society and in attaining the aims and objects of the Society.

h) To ensure timely filing of all statutory returns/documents/statutory requirements with the Government Offices.

i) To conduct correspondence on behalf of the Society/Governing Body, to sign letters and papers on its behalf and to ensure that all statutory registers and records are properly kept and maintained.

j) To prepare, before announcing the date of election and the Annual General Meeting, the list of all members eligible to vote, duly updated, and to place the same before the Governing Body.

k) Execution of all the programmes of the Society, including financial programmes, as directed by the General Body, on behalf of the Governing Body, including fixation of salaries/remuneration/allowances, making appointments/engagement of staff, making purchases and doing all other such acts as may be necessary in furtherance of the aims and objects of the Association.

l) To approve expenditure vouchers of up to Rs. 5,000/- incurred as per the approved budget or as prescribed in the Bye-Laws and forward them to the President for his counter-signature. Expenditure vouchers within approved budget above Rs.5000/- will be forwarded by him/her to President for approval.

24. JOINT SECRETARY

a) Joint Secretary shall coordinate with the General Secretary for all the functions of the General Secretary and assist the General Secretary in carrying out his duties.

b) In the absence of the General Secretary, to act on his behalf and perform all duties and exercise all the powers of the General Secretary.

c) The Joint Secretary shall perform such functions as are assigned to him/her by the Governing Body from time to time.

25. TREASURER

a) To operate the Bank Account with the authority of the President.

b) To sign all documents/papers relating to financial matters.

c) To keep accounts of all financial transactions of the Society and of all the sums of money received and spent by the Society and maintain records of receipts and expenses relating to such matters, and of assets, credits and liabilities.

d) He/she shall be responsible for management of the finances and accounts of the Association, receipts and expenditure, bank accounts, maintenance of all books of accounts, investment of surplus funds and audit of the accounts of the Association.

e) He/she shall be responsible for the deposit of all money and other valuable effects in the name and to the credit of the Association, in such depositories as may from time to time be decided by the Governing Body.

f) To get the accounts of the Society audited by a Chartered Accountant.

g) In case of any exigency, expenditure incurred beyond the approved budget will be forwarded by him/her to the President for approval and shall further be post-facto approved by the General Body for settlement

26. EXECUTIVE MEMBERS

Executive Members shall perform such functions as are assigned to them by the Governing Body from time to time.

CHAPTER-IV

27. CONSTITUTION OF BOARD OF MANAGERS OF THE ASSOCIATION, THEIR FUNCTIONS AND POWERS
Not Required.

28. DUTIES, POWERS AND FUNCTIONS OF THE BOARD OF MANAGERS
Not Required.

29. RESTRICTION ON BOARD OF MANAGERS FROM RECEIVING ANY BENEFIT
Not Required.

30. VACANCIES IN THE BOARD OF MANAGERS

Refer Clause 19.4 for this.

31. ENGAGEMENT OF SERVICE PROVIDER, ESTATE MANAGER AND OTHER OFFICIALS

31.1 The Governing Body may engage one or more service-providing agencies for performance of such functions or delivery of such services and for such compensation as it may determine for the purpose.

31.2 The Governing Body may engage or employ individuals, on a full-time or part-time basis, in the employment of the Association, for a remuneration or compensation as determined by it, and performance of such duties and services as may be decided by the Governing Body.

31.3 To draft the processes of awarding contracts for Annual Maintenance of various facilities like Gen Set, Lifts, Fire Extinguishers and outsourcing of other services, getting them ratified by the Governing Body and then acting accordingly for awarding the contracts for these services.

31.4 The Governing Body may require all or any of the employees of the Association to furnish a fidelity bond.

CHAPTER-V

32. MEETINGS OF THE GOVERNING BODY

The meetings of the Governing Body will be held as and when required. However, the Governing Body shall meet at least once in two months.

33. NOTICE FOR THE MEETINGS

A clear notice of 3 days of every such meeting will be given by the Secretary to the members before the date appointed for the meeting. However, the Governing Body may meet at shorter notice, wherever so required, with the consent of at least 50% of its members.

34. QUORUM

The quorum of the meetings of the Governing Body shall be at least 40% of the total members of the Governing Body present and voting. In case the quorum is not present, the meeting shall be adjourned to another date for which a proper notice shall be issued. The members present in the adjourned meeting, subject to a minimum of 3 Office Bearers and a minimum of 4 Executive Members, in which the General Secretary shall be present, shall form the quorum for the adjourned meeting.

35. PROCEEDINGS OF MEETINGS

35.1 The proceedings of every meeting of the Governing Body will be recorded in the proceedings book (bound) separately maintained for this purpose. Such minutes shall be signed by all the Office Bearers/Governing Body members present in the meeting.

35.2 The minutes of every meeting of the Governing Body will be placed for information and, if required, for approval by the General Body.

35.3 All the Office Bearers/Governing Body members are expected to attend all meetings. Failure to attend three consecutive meetings without explanation or valid reason for the absence (informing the Secretary well in time about the absence will not be counted as absent) will constitute grounds for removal of the member from the Governing Body.

35.4 The proceedings may be circulated amongst the Governing Body by electronic mode.

CHAPTER-VI

FUNDS, ACCOUNTS AND AUDIT

36. FUNDS - SOURCES OF INCOME OF THE SOCIETY

The sources of income of the Society shall include funds from and not limited to:

36.1 Grants from the Government and local bodies, if any;

36.2 Transfers from the savings available in the Capital Account of the GREEN POWER RESIDENCY, if any;

36.3 The funds generated through contribution by Members;

36.4 Receipts of the Society from other sources;

36.5 The sources of income of the Society will include receipts on account of membership fee, annual subscription, maintenance charges, rent from property/assets, interest, consultation fees, donations, gifts, grants, etc.;

36.6 The Society can also raise funds through interest-free short-term loans from its members or from scheduled banks on interest with the approval of the Governing Body;

36.7 Loan from the scheduled banks on interest will be taken only for the purchase or creation of capital assets

and not for meeting any recurring revenue expenditure under any circumstances;

36.8 Revenue surpluses which may form the nucleus of the Reserve Fund;

36.9 The Governing Body should also take over IFMS with interest, if any, kept under a separate head as a Sinking Fund, collect and maintain additional contributions for the Sinking Fund to ensure proper Electrical and Equipment Maintenance, Infrastructure Maintenance, Plant and Machinery and any other relevant maintenance required for the upkeep of the Society. They should define the policy for utilization of funds, and funds should be used as per the approved policy of the Governing Body.

37. INVESTMENTS

37.1 The funds received as referred to above or in any manner shall forthwith be deposited/invested in a Scheduled Commercial Bank(s) to be decided by the Governing Body from time to time.

37.2 In any of the securities specified in Section 20 of the Indian Trust Act, 1882;

37.3 In any other manner as resolved by the Governing Body.

38. DEPLOYMENT OF FUNDS

The income and property of the Association shall be applied solely towards promotion of the aims and objects of the Association as set forth in the Memorandum of Association and no portion thereof shall be paid or transferred, directly or indirectly, to the members of the Association.

39. MAINTENANCE OF THE ACCOUNTS

39.1 The Bank accounts of the Society will be jointly operated by such members/Office Bearers as may be decided by the Governing Body from time to time;

39.2 All assets and funds will belong to the Society and vest in the Society;

39.3 All receipts shall normally be collected through bank instruments (Money Order/Cheques/Bank Transfers/RTGS) except annual subscription or any collections for social events;

39.4 All payments by the Society shall also be normally made through bank instruments; however, payment up to Rs. 2,000/- can be made in cash with post-facto approval by the Governing Body. In case the need arises for cash payment exceeding this amount, the Governing Body may determine the limits, subject to approval by the Governing Body.

39.5 The General Secretary/Treasurer shall maintain a passbook in respect of every member (Unit Owner) in electronic or physical form, in which entry will be made towards contribution paid by the member towards common expenses and share of assessment and other dues. The statement of account shall be made available to the member on demand.

39.6 The Treasurer of the Society will be responsible for keeping and maintaining proper books of accounts, i.e., cash book, ledger, etc., as required under the Income Tax laws and/or any other authority, including the Institute of Chartered Accountants of India, at its Registered Office with respect to all sums of money received and spent by the Society and the assets and liabilities of the Society.

39.7 The Treasurer can keep with him/her up to Rs. 2,000/- to meet emergent expenditure. Any excess money shall be deposited in the bank within one week's time.

39.8 The books of accounts of the Society shall be open to inspection during business hours by the Registrar General, Registrar, District Registrar or any officer authorized by them and by any member of the Society as per the Bye-Laws.

39.9 Any Member can access the Books of Accounts or any other financial reports during office working hours by giving advance notice of 3 (three) days and by paying an inspection fee of Rs. 100/- (Rupees One Hundred) per member.

39.10 The Bank account of the Association will be operated jointly under the signatures of any two out of the authorized signatories in the bank, i.e., President/Sr. Vice-President/Vice-President/General Secretary/Treasurer/Joint Secretary.

39.11 No one, unless specially authorized by the Governing Body, will keep any cash in hand.

40. ANNUAL ACCOUNTS

40.1 The accounts will be closed on 31st March of any financial year. An annual financial account of the Association shall be made as soon as possible but in any case on or before 30th June of the next financial year.

40.2 The annual account shall contain (i) Profit and Loss Account; (ii) the receipt and expenditure of the previous financial year; (iii) a summary of the property and assets and liabilities of the common areas and facilities of the Association; (iv) detailed report of the Top 5 Expenditures of the year with the reason, objective or purpose of expenditure; and (v) details of collections and expenses of all the events organized during the tenure from time to time, and the details should be made available within 30 days from the date of each event.

40.3 Any Member of the Society can view the details during office hours with prior notice of 3 (three) days in advance by paying an inspection fee of Rs. 100/- (Rupees One Hundred) per member.

40.4 The Governing Body can also share such details with General Body Members as and when it is ready to bring absolute transparency in its functioning.

41. AUDIT OF ACCOUNTS

41.1 The Annual Accounts shall be submitted for audit by a Chartered Accountant engaged by the Governing Body, such Chartered Accountant not being a member of the Association or a close relative of any of the Governing Body members.

41.2 The annual accounts of the Society will be signed by the President, Secretary and Treasurer of the Society.

41.3 The Auditors shall audit the accounts of the Association and submit their report thereon.

41.4 The audited financial statement shall be open to inspection by any member of the Association during office hours and in the office of the Association, and a copy thereof shall be placed on the Notice Board at least seven days before the Annual General Meeting for its approval and adoption not later than 31st August of the year.

41.5 Every financial statement shall be accompanied by a complete list of the Unit Owners, along with the amount receivable from or payable to the members.

41.6 A copy of the Annual Audited Accounts shall be filed in the office of the District Registrar in the form and manner prescribed under the relevant law.

41.7 Concurrent audit, if any, shall be undertaken by members nominated for the same by the Annual General Meeting.

41.8 The accounts duly audited, together with a report from the Governing Body, will be presented in the Annual Meeting of the Governing Body for its approval.

42. APPOINTMENT OF AUDITOR AND RELATED MATTERS

42.1 The Governing Body will appoint a Chartered Accountant of repute, who shall not be a member of the Association or a relative of any Governing Body member, for auditing the accounts and filing of Income Tax Returns of the Society for each financial year, at such remuneration as may be determined by the Governing Body.

42.2 The auditors shall have access to the books of accounts and vouchers of the Society and shall be entitled to call for and examine any document covering the complete scope of the Association.

CHAPTER-VII

43. MORTGAGES

43.1 A member, who mortgages his or her dwelling unit in favour of any financial institution, shall notify the Association through its General Secretary, the name and address of his or her mortgagee, and the Association shall maintain such information in a book titled as "Mortgages of the Units".

43.2 The Association may, at the request of the Mortgagee of a unit, report any unpaid assessments or charges due from the owner of such unit.

CHAPTER-VIII

44. MEMBERS TO CONTRIBUTE FOR VARIOUS CHARGES

44.1 The Association shall determine the rates of various charges to be contributed by the members on account of all or any of the following:

44.1.1 Charges for the operation and maintenance of common areas and facilities, e.g. security, cleaning, garbage disposal, horticulture, electrical and plumbing services, AMCs of various facilities, e.g. lifts, Gen-sets, CCTV system, Intercom, etc.;

44.1.2 Charges for use of common facilities, e.g. Gym, Indoor Games, Lounge, Terrace with Lounge, Common Kitchen Area, Lawns, etc.;

44.1.3 Utility charges, i.e. electricity bills of individual dwelling units (if the power is being supplied to the Association Complex from an HT Connection), water charges, etc.;

44.1.4 Contribution to the Reserve Fund for meeting major repairs and renovation works required for the common areas of the complex;

44.1.5 Costs towards payment of insurance premium to cover the risk against various eventualities, e.g. fire, earthquakes, calamity, strike or any terrorist action;

44.1.6 Any taxes, fees or cess payable to the local Municipal Corporation;

44.1.7 Preparation of non-transferable biometric Photo ID Card for owner members for usage of club/recreational facilities as detailed in Clause 2.12. Such card may be used as the Photo ID Card issued by GREEN POWER

RESIDENCY.

44.1.8 Any other charges not specifically covered under the above.

44.2 All expenditure incurred on the maintenance of the common facilities and services of the housing complex shall be recoverable from and payable by the members as decided by the Governing Body.

44.3 All members shall pay the maintenance charges and electricity charges/bills, etc. within the stipulated time frame. Payments made after the due date shall be subject to 18% penal interest on the said amount up to the period of one month, and thereafter an additional penalty charge of Rs. 50/- per day will also be charged until the dues are cleared.

44.4 Tenants have to pay item-specific usage charges for club/recreational facilities and for issuance of a separate Photo ID Card to obtain access to the same. The rates shall be determined by the Governing Body.

CHAPTER-IX

45. MEMBERS RIGHTS AND OBLIGATION

45.1 Rights

45.1.1 Each member of the Society shall have the right to inspect the books of accounts, books containing the minutes of proceedings of the Annual General Meeting, Governing Body Meeting and Register of Members of the Society on any working day by giving a notice of three (3) days after depositing Rs. 100/-.

45.1.2 A member of the Association shall be entitled to participate in General Meetings and functions of the Association.

45.1.3 Each member shall have a right to cast his/her vote at the elections of the Governing Body and can also stand for election to the Governing Body, subject to fulfilment of Clause 6.

45.1.4 Each member shall have the voting right and have one vote at the meeting of the Association, but any member whose subscription has remained in arrears before holding the Annual General Meeting or Extraordinary General Meeting shall not be entitled to exercise the voting right at any of the meetings.

45.2 Obligations

45.2.1 All the members (Unit Owners, Tenants) of the Society shall be bound by the rules and regulations of the Society as contained in its Bye-Laws and amended from time to time.

45.2.2 Obligation to timely payment of all charges and contributions: Each and every owner of a Unit in the Society shall be under obligation at all times to pay the common maintenance charges and user charges as determined by the Association from time to time and the utility bills in respect of electricity, sewerage and water consumption without being in arrears.

45.2.3 Contribution to the Sinking Fund for meeting major repairs or replacement of equipment of capital nature and renovation works required for the common areas of the complex as decided by the Governing Body.

45.2.4 Any taxes, fees or cess payable to the local Municipal Corporation and/or State/Central Government.

45.2.5 Any other charges not specifically covered under the above but determined by the Governing Body.

45.2.6 If any of the dwelling Unit Owners is not available in the Society for an extended period, they are expected to make arrangements for timely payment of monthly maintenance charges, fees, etc., either by depositing a sufficient advance amount with the Association or by providing post-dated cheques to their neighbours or Governing Body members, with an intimation to the Secretary.

46. OBSERVANCE OF DUTIES AND RESPONSIBILITIES

46.1 The Unit Owner and/or resident, including tenants, shall be obliged to observe their duties as set out herein and obligations issued by the Association in the form of Guidelines/Circular/Notice/Do's & Don'ts, etc. from time to time, and any violation of the same shall make them liable to fine as may be determined by the Association at its meeting or by any Special Committee appointed by it in this regard.

47. ENFORCEMENT OF OBLIGATION

In case any Unit Owner is in arrears of payment of his/her obligations for a period of 30 days or more, the Governing Body shall be competent to take all measures for the recovery of such arrears of monthly maintenance charges, monthly utility bills (electricity and related charges) and other user charges, including coercive measures by taking recourse to disconnection of electricity and water supply to the dwelling unit, blocking its sewage outflow, and denial of access to the use of common facilities including the lifts.

48. MAINTENANCE AND REPAIR OF INDIVIDUAL DWELLING UNITS

48.1 Every Unit Owner shall promptly undertake the maintenance and repair work in respect of any installation within his/her own dwelling unit, which, if not attended to promptly, may have an adverse effect on the dwelling

units of other members or the common areas of the Society.

48.2 Should there be any damage or injury to the common areas or facilities in the process of internal works in any Unit, the owner shall either get the same restored to its condition at his/her own expense or be liable to pay and reimburse the expenditure incurred by the Association on getting such damages repaired.

48.3 The Unit Owner 'A' shall either reimburse and compensate the owner of another Unit 'B' for any damage or injury caused to his/her (B's) Unit in the process of repairs carried out in his/her (A's) Unit or get the same repaired at his/her cost to the satisfaction of the affected owner. In case of dispute, the matter is to be resolved by the Sr. Vice-President of the Association.

48.4 No Unit Owner shall make any structural modifications or alterations in his/her Unit or installations located within the Unit without previously notifying the Association in writing, through the General Secretary, and securing prior permission of the Governing Body for such modifications and alterations.

48.5 The Governing Body shall respond to any request received under Clause 48.4 above at the earliest but not exceeding 30 (thirty) days. In case no response is received to the contrary within 30 (thirty) days, it shall be deemed that there is no objection to the proposed modification, alteration or installation.

48.6 The Unit Owner is liable to pay a refundable deposit of Rs. 5,000/- (Rupees Five Thousand) towards any sort of renovation work carried out by them inside their dwelling unit. In addition to the above, the Unit Owner shall deposit a minimum of Rs. 1,000/- (Rupees One Thousand) towards the usage of common facilities of the Society while renovation is carried out inside their flat, or such charges as decided by the Governing Body.

48.6.1 Provided that the elevation and engineering structure of the building shall not be changed under any circumstances.

48.6.2 Provided further that any change affecting any other Unit will not be permitted.

48.7 The terms and conditions of contract with the service provider for maintenance shall be decided by the Governing Body.

49. USE OF INDEPENDENT UNITS AND LIABILITY FOR VIOLATION

49.1 All the Units shall be used for residential purposes only, as permissible under the regulations of the competent authority of Government/GREEN POWER RESIDENCY from time to time. Any commercial activity in residential towers/common areas is strictly prohibited.

49.2 Bachelors, either singly or in a group, shall not be permitted as tenants in the Society. However, in case any such tenancy exists, the owner of the flat shall be held responsible for their conduct. Police verification of tenants from the local police station is mandatory.

49.3 Foreign nationals shall not be permitted as tenants in the Society.

50. USE OF COMMON AREAS AND FACILITIES AND RESTRICTED COMMON AREAS AND FACILITIES

50.1 No member shall place, cause or allow to be placed any furniture, packages or objects of any kind in the lobbies, vestibules, stairways, elevators and other areas of the GREEN POWER RESIDENCY Complex and facilities of a similar nature, both common and restricted, that may impede or are expected to impede the smooth movement of persons or goods or may cause inconvenience to the residents.

50.2 The common or restricted areas shall not be used for any purpose, e.g. storage or construction work, except where specifically authorized by the Association, other than for normal transit and circulation.

50.3 The GREEN POWER RESIDENCY Complex has provision for elevators earmarked for the use of Unit Owners/Tenants and their guests and service elevators earmarked for freight service or auxiliary purposes.

50.4 Owners, tenants and their workmen shall use the freight or service elevator only for carrying any packages, merchandise or construction material or any such other objects which may affect the comfort or well-being of the passengers of the elevators dedicated for the use of owners, occupants and guests. The users shall exercise due care and caution and ensure that no damage or defacing is caused to any of the lifts during the use thereof.

51. RIGHT OF ACCESS AND ENTRY IN EMERGENCY AND NORMAL CONDITIONS

51.1 Every Unit Owner shall ensure unhindered access to the authorized persons or any workers/contractors employed by the Association to attend to any emergent situation arising from electrical installations, plumbing installations or any such thing, which might threaten the safety of their Unit or any other Unit, whether in his/her presence or absence. In his/her absence, he/she will be contacted and appropriate action taken in the presence of an Office Bearer and a minimum of 2 (two) Executive Body Members from that tower.

52. CODE OF CONDUCT FOR UNIT OWNERS

52.1 To ensure that his/her/their Unit is not used for any unlawful, illegal, immoral or anti-national activity.

52.2 To ensure that his/her/their Unit is not used for any commercial activity.

52.3 To ensure that the laws, rules and instructions of the police and/or any law enforcement agency regarding verification of their tenants are duly complied with and obtained within 30 (thirty) days, and a copy of the same is submitted to the General Secretary of the Association. The owners must inform the Association about letting out their flat before the tenant moves in and apply for an NOC.

52.4 All the Unit Owners and/or residents, including tenants and their domestic help, if any, are obliged to maintain at all times a clean and hygienic environment in the complex.

52.5 No owner or resident of the Complex shall post any advertisement or notice in or on the building except as authorized by the Association.

52.6 The guests, visitors and maintenance workers, etc. are required to sign the visitor's register at the entrance gate, failing which entry to the Housing Complex may be denied by the Security Staff.

52.7 Consumption of alcohol or any intoxicants, etc., and smoking by the residents and/or their guests and domestic staff in the common areas and in the lifts is strictly prohibited.

52.8 The flat owners/tenants are not allowed to keep pets with them in the dwelling units/Society premises.

52.9 The Maintenance Agency should take defined action to keep away stray dogs/pigs, monkeys and other animals from the Society Complex, preferably in coordination with MCF or any NGO organization or any suitable agency.

52.10 The Flat Owners/Residents shall:

52.10.1 Contain and confine the noise level caused by any construction, maintenance and repairs in any Unit or use of musical instruments, radios, television, amplifiers and any other devices so as to ensure that other residents are not disturbed in peaceful enjoyment of their privacy. No loud music is allowed beyond 10 pm. On violation of the same, police action will be initiated as deemed fit. However, during celebration of festivals, rituals, marriage and family functions in common areas, the time limit is extended up to 11 pm with the sound level below 40 decibels.

52.10.2 No construction activity is allowed from 6 pm to 9 am (next day) unless it is in exigency.

52.10.3 Not allow throwing or dropping of any garbage, trash or litter from the windows or balconies.

52.10.4 Not lay or install or cause to be laid/installed any wiring for electrical or telephone installation, television antennae, machines or air-conditioning units, etc. on the exterior of the Complex building or that protrude through the wall or the roof of the building, except as authorized by the Association. It can be done only if it is approved by the Governing Body as per existing guidelines.

52.11 The Unit Owner and/or resident, including tenants, shall abide by the Guidelines/Circular/Notice/Do's & Don'ts, etc. issued by the Association from time to time.

52.12 All owners shall obtain a No Objection Certificate (NOC) from the Association before effecting sale of a Unit or putting it for rent. NOC will be issued only after all dues to the Association are settled. In the absence of compliance, the buyer or tenant of the Flat shall not be allowed to shift into the campus of GREEN POWER RESIDENCY, unless otherwise the dues are cleared.

53. PARKING OF VEHICLES

53.1 The Unit Owners/Residents/Tenants shall follow the following guidelines in this behalf:

53.1.1 Car parking slots are earmarked for each Unit. Parking stickers shall be issued for each Unit for regular overnight parking of vehicles inside the building complex. These stickers will be displayed on the left of the front windscreen of the cars of the residents.

53.1.2 Entrance and parking of any additional vehicle on a regular basis for an additional charge in the Complex will be regulated by the Governing Body.

53.1.3 It is expected that every Owner/Resident and their visitors shall park or cause to be parked their cars at the assigned parking slot specifically allotted to a Unit.

53.1.4 No Owner or Resident shall park or allow his/her vehicles to be parked in the driveways/pathways demarcated for the movement of vehicles in the basement, or park two-wheelers in the area earmarked for four-wheelers.

53.1.5 All the Unit Owners and Residents are expected to ensure that their vehicles or taxis are not parked in the main driveway except for drop-off and pick-up of passengers.

53.1.6 If any vehicle is found to be parked in the wrong location or is found to be over-speeding, GREEN POWER RESIDENCY or its empowered Maintenance Agency will impose a fine of Rs. 500/- (Rupees Five Hundred only) for each occasion per day. Further, the vehicle of repetitive offenders will not be allowed in the Society premises, and the decision of the RWA in this regard shall be final and binding.

53.1.7 If any vehicle is found to be parked and stranded in the wrong location for more than 5 days, the vehicle will be arranged to be towed away outside the complex to the nearest Police Station and the sticker for that particular

vehicle will be disabled. Expenditure incurred in this regard will be recoverable from the owner. The sticker will be issued after submission of the payment and fine.

54. DOMESTIC STAFF (SERVANTS, DRIVERS, CLEANERS, COOKS AND DOMESTIC WORKERS, ETC.)

54.1 Unit Owners/Residents are required to get their servants, drivers, cleaners, cooks and domestic workers (henceforth referred to as the Domestic Staff) employed by them verified by the local police and to submit a copy of the police verification to the Governing Body. Entry to the Housing Complex may be denied to Domestic Staff not verified by the local police. The conduct of Domestic Staff employed by Owners/Residents shall be ensured by the respective Owners/Residents, and any mishap caused by the Domestic Staff to the Society or other members shall be the sole responsibility of the Owners/Residents.

54.2 The names and other particulars of the servants, drivers and Domestic Staff employed by the residents should be supplied by them to the Governing Body/Security-in-Charge. The Governing Body/Security-in-Charge shall issue identity cards to them, which must be carried by the Domestic Staff while in the Complex. On termination of the employment of any member of their Domestic Staff, it shall be the responsibility of the Owner/Resident to inform the Governing Body/Security-in-Charge and return the identity card.

54.3 The Domestic Staff is prohibited from using the common areas for recreation, assembly or sitting unless accompanied by the residents. Domestic Staff will use only the areas earmarked for them in the Complex area.

CHAPTER-X

55. COMPLIANCE

55.1 These Bye-Laws are set forth to comply with the requirements of the Haryana Registration and Regulation of Societies Act, 2012, read with the provisions of the Haryana Apartment Ownership Act, 1983 and the rules framed thereunder. In case of any inconsistency between these Bye-Laws and the provisions of the said Acts, the provisions of the Acts will apply.

56. SEAL OF THE ASSOCIATION

The Association shall have a common seal which shall be in the custody of the General Secretary/Joint Secretary and shall be used only under the authority of a resolution of the Governing Body, and every deed or instrument to which the seal is affixed shall be attested for or on behalf of the Association by two members of the Governing Body, including the General Secretary/Joint Secretary, or any other person authorized by the Association in that behalf.

57. AMENDMENT OF THE MEMORANDUM AND/OR BYE-LAWS OF THE ASSOCIATION

57.1 The Governing Body shall have the power for framing, amendment and modification of any of these Bye-Laws and Memorandum of Association or change of name.

57.2 Based on the interpretation of the provisions of the Bye-Laws, the Governing Body is empowered to amend, alter or delete any of the Rules as well as the Memorandum of Association, whenever necessary under Section 26 of the Haryana Registration and Regulation of Societies Act, 2012 and under Section 16 of the Haryana Apartment Ownership Act, 1983, as applicable to the State of Haryana.

57.3 The Memorandum of Association or the Bye-Laws may be amended through a Special Resolution passed in a General Meeting of the Association by 3/5th of the members present and voting, conforming to Clause 2.14 of the Bye-Laws.

57.4 Provided that where a member is unable to attend the meeting in person due to medical treatment/emergency, he/she may communicate his/her comments on the amendment to the Memorandum or the Bye-Laws, as the case may be, by electronic means or letter at least one day prior to the date of the meeting, which shall be read out by the General Secretary in the meeting, but shall not be used for voting and decision-making.

58. AMALGAMATION OR DISSOLUTION OF THE ASSOCIATION

58.1 The Association of Unit Owners of the GREEN POWER RESIDENCY is a body corporate with perpetual succession and is not likely to be dissolved.

58.2 The Association may, however, amalgamate itself with any other Society with identical aims and objects through a Special Resolution passed in a General Meeting of the Association and approved by at least 3/5th of the members present and voting.

AMENDMENTS / NEW BYE-LAWS

Approved by the General Body in the Annual General Meetings (AGMs)

PART I – BYE-LAWS APPROVED IN AGM 2020

1. PETS IN THE SOCIETY

1.1 Pets shall be permitted within the Society in accordance with the applicable laws, rules, regulations, guidelines and directions issued by the Government and other competent authorities from time to time.

1.2 The Society shall not impose any restriction or prohibition on keeping pets which is contrary to applicable Government rules, regulations or directions.

1.3 The Executive Committee of GPRWA shall prescribe and communicate reasonable Dos and Don'ts relating to the keeping, handling and movement of pets within the Society, in accordance with applicable law.

1.4 The applicable rules, regulations, Dos and Don'ts shall be circulated to all members/residents and displayed on the Notice Board of the Society.

1.5 Necessary action may be taken against any member/resident who fails to comply with the applicable rules, regulations and stipulated Dos and Don'ts, subject to applicable law.

PART II – BYE-LAWS APPROVED IN AGM 2023

2. CHARGE ON SALE / RESALE OF FLAT

2.1 A charge of ₹50,000/- (Rupees Fifty Thousand only), or such other amount as may be prescribed/directed by the Hon'ble Supreme Court or any other competent authority, shall be payable to GPRWA by the owner of a flat at the time of sale/resale/transfer of the flat in Green Power Society.

2.2 The applicable amount shall be deposited with GPRWA before issuance of the No Objection Certificate (NOC) in respect of the sale/resale/transfer of the flat.

2.3 No NOC shall be issued by GPRWA unless the applicable amount has been duly deposited in the account of GPRWA, subject to applicable law and directions of the competent authorities.

2.4 The following transactions shall be exempted from payment of the aforesaid ₹50,000/- charge:

a. Resale/transfer between blood relations, namely:

- Son;
- Daughter;
- Brother;
- Sister; and
- Spouse.

2.5 Cases which had already been closed prior to the approval of this bye-law shall not be reopened on account of this provision.

PART III – BYE-LAWS APPROVED IN AGM 2025

3. INSTALLATION OF AIR-CONDITIONING (AC) UNITS

3.1 No air-conditioning unit shall be installed or maintained outside the designated area of the flat in a manner that is contrary to the applicable Society norms, safety requirements or applicable rules and regulations.

3.2 Existing AC units hanging outside the designated balcony/approved area shall be shifted by the concerned flat owner to within the balcony within one month from the date of issue of the minutes of the AGM.

3.3 The Executive Committee of GPRWA shall be authorized to issue necessary communication to the concerned flat owners for compliance.

3.4 In case the concerned flat owner fails to shift the AC unit within the stipulated period, the Executive Committee of GPRWA shall be authorized to impose a penalty of ₹5,000/- (Rupees Five Thousand only) per month through the C4T App, without any further notice, subject to applicable law.

4. BOOM BARRIER, RFID AND VEHICLE / PARKING REGULATIONS

4.1 For strengthening the security of the Society, a boom barrier at the Society's security gate shall be installed/operated through the designated security/management service provider.

4.2 RFID tags shall be issued for vehicles of residents in accordance with the Society's vehicle-management system.

4.3 The cost of the first RFID tag for a resident's vehicle shall be borne by GPRWA.

4.4 Any additional RFID tags required by a resident shall be issued on a chargeable basis, at the applicable rate determined by GPRWA.

4.5 In view of the limited parking space available within the Society premises, an entry/parking charge of ₹1,000/- (Rupees One Thousand only) per month per vehicle shall be payable for the third four-wheeler onwards owned by any resident.

4.6 The applicable charge shall be recovered from the concerned resident through the C4T App.

4.7 Parking for more than two four-wheelers per resident/owner shall not be guaranteed and availability of parking shall remain subject to the parking capacity and arrangements of the Society.

4.8 A resident/owner shall not be entitled to claim any refund on account of non-availability of parking for vehicles beyond the permitted/guaranteed number.

4.9 Residents/owners shall provide the required information regarding vehicles belonging to their visitors, including the expected duration of stay, at the Security Gate or through the prescribed Society system.

4.10 Visitor vehicles shall be parked only in the designated visitors' parking area.

4.11 The Executive Committee of GPRWA shall be authorized to take appropriate action, in accordance with applicable law and Society rules, against unclaimed, unauthorized or improperly parked vehicles, whether two-wheelers or four-wheelers, within the Society premises, particularly where such vehicles may pose a security or safety concern.

5. MAJOR CIVIL / OTHER WORKS WITHIN FLATS – SECURITY AND CLEANLINESS CHARGES

5.1 Prior to commencement of any major civil, renovation, repair or other works within a flat which may generate construction debris, garbage or scrap or may affect common areas, the concerned resident/flat owner shall deposit the following amounts with GPRWA:

- a. Security Deposit: ₹5,000/- (Rupees Five Thousand only); and
- b. Compulsory Charges: ₹5,000/- (Rupees Five Thousand only).

5.2 The total amount payable prior to commencement of such work shall therefore be ₹10,000/- (Rupees Ten Thousand only).

5.3 The above amount shall be deposited before permission is granted for commencement of the major civil/other works.

5.4 The security deposit of ₹5,000/- shall be refunded or adjusted against the applicable CMC amount, as may be determined by the Executive Body of GPRWA, if the Executive Body is satisfied that:

- a. the resident/owner/contractor has complied with all applicable Society terms, conditions and norms;
- b. no damage has been caused to Society property or common areas; and
- c. no nuisance, obstruction, inconvenience or other disturbance has been caused to the Society or other residents.

5.5 In case of non-compliance with the applicable terms and norms, or where damage, nuisance, obstruction or inconvenience is caused, the security deposit may be forfeited, as determined by the Executive Body of GPRWA.

5.6 The concerned resident/flat owner shall remain responsible for ensuring that the contractor, labourers and workers engaged for the work comply with all Society rules relating to cleanliness, disposal of debris and protection of common areas.

6. UNAUTHORIZED USE, ENCROACHMENT OR OBSTRUCTION OF COMMON AREAS

6.1 The common areas of the Society shall not be used for any personal purpose, unauthorized construction, obstruction, encroachment, storage or any other unauthorized activity.

6.2 Any unauthorized construction, obstruction or encroachment in the common areas for personal use shall be dealt with by GPRWA in accordance with the applicable rules and law.

6.3 The Executive Committee of GPRWA shall have the right to require the concerned resident/owner to remove such unauthorized construction, obstruction or encroachment.

6.4 A notice shall be issued to the concerned resident/owner through email, providing the stipulated time for compliance.

6.5 If the concerned resident/owner fails to comply within the stipulated period specified in the notice, the Executive Committee shall be authorized to arrange for removal of the unauthorized construction, obstruction or encroachment without any further notice, subject to applicable law.

6.6 The cost and expenses incurred for such removal shall be recoverable from the concerned resident/owner through the C4T App.

6.7 Garbage, scrap, unclaimed or unauthorized material, construction material and any other unauthorized items lying in common areas shall be removed within three days from the date of identification, without requiring any further notice.

6.8 The concerned resident/owner shall be responsible for all costs and consequences arising from the removal of material or items attributable to such resident/owner, subject to applicable law.

7. SEEPAGE / DAMPNESS ARISING FROM INDIVIDUAL FLATS

7.1 Every flat owner shall ensure timely repair and maintenance of internal pipelines, AC drainage pipes and other installations within the flat where leakage or seepage may cause damage, dampness or seepage to the external/common areas or neighbouring flats.

7.2 Where seepage from an individual flat causes dampness, damage or deterioration to the walls, floors, external areas or other portions of the Society or neighbouring flats, the concerned flat owner shall take immediate corrective action upon receipt of notice from GPRWA.

7.3 Where the concerned flat owner fails to attend to the seepage issue within one week from the date of notice issued by GPRWA through email, a suitable penalty equivalent to the cost of carrying out the required repair work in the damaged external area may be imposed through the concerned flat owner's C4T account, without further notice, subject to applicable law.

7.4 Where the main source of seepage affecting an external/common area is attributable to a particular flat and the concerned flat owner fails to rectify the source of seepage within one week from the date of notice issued by GPRWA through email, a penalty of ₹1,000/- (Rupees One Thousand only) per week may be imposed through the C4T App, without further notice, subject to applicable law.

7.5 In the event of a complaint by an individual flat owner or tenant regarding seepage or dampness within the flat, and where it is established that the source/cause of such seepage is from an adjacent flat, the concerned flat

owner shall rectify the source of seepage within one week from the date of notice issued by GPRWA through email.

7.6 If the concerned flat owner fails to rectify the issue within the stipulated period, a penalty of ₹1,000/- per week may be imposed through the C4T App, without further notice, subject to applicable law.

7.7 The imposition of any penalty under this Bye-Law shall be without prejudice to the right of GPRWA to take such other lawful action as may be available under the applicable law, rules, regulations and Society bye-laws.

8. GENERAL PROVISIONS

8.1 All the above Bye-Laws/resolutions shall be read subject to the applicable laws, rules, regulations, Government directions, orders of competent authorities and judgments/directions of the Hon'ble Supreme Court and other competent courts/authorities.

8.2 In the event of any conflict between these Bye-Laws and any mandatory provision of law or binding direction of a competent authority, the applicable law or binding direction shall prevail.

8.3 The Executive Committee of GPRWA shall be responsible for implementation and enforcement of these Bye-Laws in accordance with applicable law.

8.4 Wherever a power to impose a charge, penalty or recover costs is provided under these Bye-Laws, such power shall be exercised in accordance with applicable law and the procedure prescribed by the competent authority, wherever applicable.

8.5 These Bye-Laws shall form part of the rules and regulations governing the residents, owners and occupants of Green Power Society upon their valid adoption by the General Body and shall remain subject to any subsequent amendment duly approved in accordance with the applicable law and governing documents of GPRWA.
